

25NWCV00282 25NWCV00282

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Case Number: 25NWCV00282 Hearing Date: June 23, 2026 Dept: L

I.

Defendants' Motion to Quash Deposition

Subpoena for Production of Business Records of First Foundation Bank is DENIED.

II.

Defendants' to Quash Deposition Subpoena

for Production of Business Records of D/Aq Corporation d.b.a. DAUM Commercial

Real Estate Services is GRANTED.

Defendants to give notice.

Background

This is an action for breach of

contract. On January 23, 2025, Plaintiff Brent J. Brunner ("Plaintiff") filed

this action against Defendants Brad Ridenour, Malinda Ridenour, Jason Decker,

(collectively, "Defendants") and Does 1 to 50.

On October 25, 2025, the Court

entered the parties' Stipulation and Protective Order.

On February 11, 2026, Plaintiff

filed the First Amended Complaint (FAC). The FAC alleges that Plaintiff was an

equal member of the limited liability company, KOI CBD, LLC (hereinafter,

"KOI"), alongside Defendants. The FAC alleges the following: "Plaintiff

developed a substance dependency issue, and the members of the LLC asked

Plaintiff to temporarily sell his membership interest to Defendants, with an

option to repurchase his interest at a later date after Plaintiff completed his

medical treatment." (FAC, ¶ 10.) On September 12, 2022, the parties entered

into a written agreement ("Agreement") that provided for a transfer of

Plaintiff's twenty-five percent (25%) membership interest to Defendants.

Plaintiff has since attempted to exercise his buy-back option, but Defendants

have refused to honor the agreement. The FAC alleges the following causes of

action: 1) Fraud, 2) Breach of Written Contract, and 3) Breach of Fiduciary

Duty.

There are two matters on

calendar:

- Defendants'

Motion to Quash Deposition Subpoena for Production of Business Records of First

Foundation Bank ("First Foundation")

- Defendants'

to Quash Deposition Subpoena for Production of Business Records of D/Aq

Corporation d.b.a. DAUM Commercial Real Estate Services ("D/Aq")

Plaintiff has submitted a joint

opposition to both Motions. Defendants have submitted separate replies.

The Court will address each

Motion in turn.

Legal Standard

Code of Civil Procedure section

1987.1 states that "[i]f a subpoena requires the attendance of a witness or the

production of books, documents, electronically

stored information, or other

things before a court, or at the trial of an issue therein, or at the taking of

a deposition, the court, upon motion reasonably made by any person described in

subdivision (b), or upon the court's own motion after giving counsel notice and

an opportunity to be heard, may make an order quashing the subpoena entirely,

modifying it, or directing compliance with it upon those terms or conditions as

the court shall declare, including protective orders." (Code Civ. Proc., §

1987.1, subd. (a).) "In addition, the court may make any other order as may be

appropriate to protect the person from unreasonable or oppressive demands,

including unreasonable violations of the right of privacy of the person.” (Ibid.)

Subdivision (b) provides that a party may make a motion pursuant to subdivision

(a). (Code Civ. Proc., § 1987.1, subd. (b).)

Discussion

i.

First Foundation Subpoena

On December 15, 2025, Plaintiff

served a Deposition Subpoena for Production of Business Records directed to the

Custodian of Records for First Foundation Bank (“First Foundation Subpoena”). (Kirolos

Decl., ¶ 3, Exh. A.) On December 18 to 29, 2025, the parties exchanged

meet and confer letters regarding the Subpoena, but were unable to come to a

resolution. (Kirolos Decl., ¶¶ 4-7, Exhs. B-E.)

The First Foundation Subpoena

seeks the following documents:

1. Any

and all DOCUMENTS that CONCERNS or RELATE TO payments made by wire transfer or

electronically from the SUBJECT ACCOUNTS, during the period between January

2016 to present.

2. Any

and all checks made payable from the SUBJECT ACCOUNTS during the period between

January 2016 to present.

3. Any

and all bank statements between during the period between January 2016 to present that was RELATE TO the SUBJECT ACCOUNTS.

4. Any

and all DOCUMENTS that CONCERN or RELATE TO the identity of the owners and holders of the SUBJECT ACCOUNTS.

5. Any

and all DOCUMENTS that shows, relates to or evidences the person or persons authorized as a signor on the account to sign checks, make deposits, withdrawals, included but not limited to signature cards, Power of Attorney, Corporate Resolution.

(Kirolos Decl., ¶ 3, Exh.

A.)

"Subject Accounts" is defined as

"any and all accounts held in the name of KOI CBD, LLC, individually and/or jointly, including but not limited to account number 1011020789, all checking and/or savings accounts, investments accounts, mutual funds, money market, certificate of deposits, IRA accounts, SEP IRA accounts, retirement accounts, retirement brokerage accounts from their inception to present unless otherwise

stated herein.” (Ibid.)

Defendants now move to quash the First

Foundation Subpoena on grounds that it seeks confidential financial information

belonging to KOI and Defendants. Defendants assert that the Subpoena seeks

KOI’s “confidential financial transactions and account information—materials

that directly implicate the company’s business operations, payroll, vendor

relationships, employee information, and financial structure.” (Mot., 10-12.) Defendants

are the only authorized signatories on the KOI account, and are entitled to invoke

privacy rights on their behalf and on the behalf of KOI and its employees.

Defendants argue that the

potential invasion of privacy is serious because the First Foundation Subpoena

demands banking records from 2016 to present. Additionally, the Subpoena’s

categories of requested documents are not reasonably particularized such that

they are overbroad and unduly burdensome. Further, Plaintiff has not exhausted

methods of obtaining the information from Defendants before turning to a First

Foundation, a non-party.

Lastly, Defendants assert that

Plaintiff has not sought leave to conduct pretrial discovery of Defendants’

financial condition pursuant to Civil Code section 3295, subdivision (c).

In opposition, Plaintiff asserts

that the First Foundation Subpoena seeks evidence relevant to Plaintiff's claims—specifically, the Subpoena will shed light on “who controlled KOI funds, how KOI funds were used, whether KOI funds were used for transactions or benefits relevant to restitution and disgorgement, whether Defendants' fiduciary conduct was consistent with their claimed position, and how Plaintiff's twenty five percent interest should be valued.” (Opp., 9:15-18.) Plaintiff argues that there is no temporal disconnect. Requested records from before the September 2022 agreement may bear on the value of Plaintiff's membership interest and KOI's assets before the disputed transfer Requested records from after the 2022 agreement and denial of Plaintiff's alleged right to buy back his ownership in KOI may bear on the benefits Defendants retained due to the denial.

Plaintiff argues that the need for discovery outweighs any asserted privacy concerns. Plaintiff asserts that any privacy concerns can be addressed via the existing protective order, redaction of account numbers, personal identifiers, vendor information, etc.

Lastly, Plaintiff asserts that to

Civil Code section 3295, subdivision (c) does not bar the First Foundation Subpoena where it is not seeking Defendants' financial condition for the proving punitive damages. Rather, the Subpoena is seeking KOI account records to prove

ownership, control, signatory authority, valuation, restitution, disgorgement, damages, and fiduciary conduct.

In reply, Defendants reiterate

that the First Foundation Subpoena is overly broad to the extent it seeks information regarding KOI's valuation.

The Court finds that the First

Foundation Subpoena is reasonably calculated to lead to admissible evidence regarding Plaintiff's claims. Specifically, the Subpoena may shed light on Defendants' motivations behind their alleged breach of the 2022 buyback agreement and KOI's valuation, which is relevant to liability and damages.

As to Defendants' right of

privacy, the California Supreme Court has recognized a privacy right for financial information, although it is not absolute. (See Valley Bank of

Nevada v. Superior Court (1975) 15 Cal.3d 652, 656-658 [finding that the

following factors should be considered by the trial court in balancing the

interests between the right of civil litigants to discover relevant facts and

the right of bank customers to maintain reasonable privacy regarding their

financial affairs: ". . . the purpose of the information sought, the effect

that disclosure will have on the parties and on the trial, the nature of the

objections urged by the party resisting disclosure, and ability of the court to

make an alternative order which may grant partial disclosure, disclosure in another form, or disclosure only in the event that the party seeking the information undertakes certain specified burdens which appear just under the circumstances”].)

The Court finds that Defendants’

privacy interests are outweighed by Plaintiff’s need for discovery. Plaintiff’s claims and damages are closely intertwined with KOI’s financial condition and transactions. The Court agrees with Plaintiff that privacy concerns can be mitigated via protective measures such as the Protective Order in place and redactions of confidential information and personal identifiers.

Accordingly, Defendants’ Motion

to Quash Deposition Subpoena for Production of Business Records of First Foundation Bank is DENIED.

ii.

D/Aq Subpoena

On December 10, 2025, Plaintiff

served a Deposition Subpoena for Production of Business Records directed to the Custodian of Records for D/Aq (“D/Aq Subpoena”). (Kirolos Decl., ¶ 3, Exh.

B.) On December 18 to 29, 2025, the parties exchanged meet and confer letters regarding the Subpoena, but were unable to come to a resolution. (Kirolos

Decl., ¶¶ 4-7, Exhs. C-F.)

The D/Aq Subpoena seeks the

following documents:

1. All

DOCUMENTS, CORRESPONDENCE, and records in the YOUR possession, custody, or

control relating to the property commonly known as 14632 Best Avenue, Norwalk,

CA 90650 ("SUBJECT PROPERTY").

2. All

escrow instructions (initial, supplemental, amendments, modifications, addenda)

executed or proposed by any party to this lawsuit that relate to the SUBJECT

PROPERTY.

3. All

loan DOCUMENTS provided to or handled by the title/escrow company, including

but not limited to: loan applications (if in file), closing disclosures, loan

estimates, notes, deeds of trust, riders, addenda, and any equity cash-out

related documentation for any property to which Defendants Brad Ridenour,

Malinda Ridenour and/or Jason Decker is a party.

4. All

closing statements, settlement statements, HUD-1s, CDs (Closing Disclosures),

disbursement ledgers, wire confirmations, checks, deposit records, invoices,

receipts, and any record reflecting the source, allocation, or disbursement of funds, including any cash-out proceeds that relate to the SUBJECT PROPERTY.

5. All

CORRESPONDENCE, DOCUMENTS, and notes (including but not limited to emails, letters, text messages, internal notes, memos, and recorded telephone message notes) between YOU and any party to the subject lawsuit including to the borrowers, lenders, mortgage brokers, real estate agents, and any third parties related to SUBJECT PROPERTY.

(Kirolos Decl., ¶ 3, Exh.

B.)

Defendants now move to quash the D/Aq

Subpoena on grounds that it seeks irrelevant escrow, loan, and property

transaction records related to 146311 Best Avenue, Norwalk, California 90650

("Subject property"), which is KOI's place of business. Defendants explain that

D/Aq is a commercial real estate company which assisted in the purchase of the

Subject Property. (Ridenour Decl., ¶ 6.) The Subject Property was acquired by

another entity, and Plaintiff was not involved in the purchase. (Ridenour

Decl., ¶ 6.) Defendants further assert that the Subpoena seeks broad categories

of documents without any time or subject matter limitation, placing undue

burden on D/Aq.

In opposition, Plaintiff argues

that KOI's real property, financing, disbursements, and related communications may bear on Plaintiff's requested remedies of restoration of his membership interest, damages, restitution, and disgorgement of benefits. Specifically, the D/Aq Subpoena will shed light on "whether KOI assets or funds were used, whether Defendants received or retained benefits connected to KOI assets, how the property was financed, how proceeds were allocated, and what information Defendants or their agents communicated regarding the transaction." (Opp., 8:14-17.)

In reply, Defendants reiterate

that 1) KOI is not the owner of the Subject Property and was not involved in its purchase, and 2) the D/Aq Subpoena fails the reasonable particularity requirement.

The Court is not persuaded that

the documents sought by the D/Aq Subpoena are reasonably calculated to lead to admissible evidence. The Subpoena seeks real estate transaction documents regarding the Subject Property. While KOI uses the Subject Property as its place of business, Defendants represent that KOI did not purchase the Subject Property. Considering KOI's lack of involvement in the purchase, the Court does not see how the requested documents will shed light on Plaintiff's damages and

claims in the instant action.

Accordingly, Defendants' Motion

to Quash Deposition Subpoena for Production of Business Records of D/Aq

Corporation d.b.a. DAUM Commercial Real Estate Services is GRANTED.

Sanctions

"[I]n making an order pursuant to

motion made under subdivision (c) of Section 1987 or

under Section 1987.1, the court may in its discretion award the amount of

the reasonable expenses incurred in making or opposing the motion, including reasonable

attorney's fees, if the court finds the motion was made or opposed in bad faith

or without substantial justification or that one or more of the requirements of

the subpoena was oppressive." (Code Civ. Proc., § 1987.2, subd. (a).)

Defendants do not seek sanctions

in relation to these Motions.

In the opposition, Plaintiff

seeks sanctions in the amount of \$3,150.00 to compensate Plaintiff for opposing

both Motions.

Based on the mixed ruling, the

Court respectfully denies Plaintiff's request for sanctions.